

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN AUSTRALIA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Australia, grounded in the planning and environmental system and documented campaigns

This guide uses New South Wales for its worked examples of the state planning system, because that is where much of the leading case law comes from. The other states and territories run their own planning systems, with different bodies and deadlines — the strategy transfers, but check the specific institutions and time limits where you are. The federal layer (the EPBC Act) applies right across Australia.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in Australia. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. In 2019 the NSW Land and Environment Court refused the Rocky Hill open-cut coal mine in the Gloucester Valley — the Chief Judge finding it was in "the wrong place at the wrong time," partly because of its contribution to climate change — after a community group, backed by free legal help, joined the case and 90% of the thousands of public submissions objected. Across the country, communities have forced mines, quarries, tips, and industrial projects to be refused, redesigned, or abandoned. These outcomes were not inevitable; communities made them happen.

But most communities don't know HOW to make opposition effective. They lodge a submission, then give up. They assume "the council will refuse it" without building public pressure. They generate coverage without a strategy. They organise people and then lose them to burnout after four months.

This guide shows what actually works — in the Australian system.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

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STEP 1: TARGET IDENTIFICATION
↓
STEP 2: DOCUMENTATION (proof of harm)
↓
STEP 3: LOCAL OPPOSITION BUILD (organised community)
↓
STEP 4: LEGAL CHALLENGES (planning / court pressure)
↓
STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)
Each step amplifies the others
Multi-tactic pressure compounds toward victory
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Why the legal step matters so much here: Australia gives communities several unusually strong legal levers. Specialist courts and tribunals (in New South Wales, the **Land and Environment Court**) can review major-project decisions on their merits and refuse a project outright — as they did at Rocky Hill. A separate **federal** approval is required under the **EPBC Act** whenever a project will significantly affect a nationally protected species or place, giving a second point of challenge. Standing to go to court is comparatively open. And free, expert legal help is available from the **Environmental Defenders Office**. No Australian campaign should be planned without understanding these.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because they depend on the development's money or jobs (state governments raise large sums in **mining royalties**), rely on the applicant's own environmental studies, or face strong political pressure to say yes.

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins refusals, conditions, redesigns, buffers, and delay. Where there is genuine misconduct — bribery, undisclosed interests — that is a different and more serious problem, covered separately in Section 11.

This is covered in Sections 10 and 11. Read them before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in Australia, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

Australia divides power over land and development across three levels of government, and — importantly — the rights and interests of First Nations run through all of them. Which body decides depends on what is being built and where.

- **Local council** — the most local tier, run by elected councillors with paid planning staff. Councils decide most everyday **development applications (DAs)** — houses, subdivisions, shops, and smaller projects — and control **zoning** (what may be built where) through a local planning instrument. Most everyday land-use fights are decided here.
- **State or territory government** — the most powerful level for large projects and for the environment. Each state and territory runs its own planning law and its own environmental assessment, and issues the licences that actually let work happen: **pollution and environment-protection licences, water licences, native-vegetation clearing approvals, and mining or petroleum leases**. Large or contentious projects are typically declared **State Significant Development (SSD)** (the NSW term) or its equivalent, and are decided by the state planning minister or an **independent planning commission** (in NSW, the **Independent Planning Commission (IPC)**) rather than the local council. Because states own most Crown land and its resources and collect the royalties, the state is usually the key decision-maker for mines, quarries, dams, and major energy and industrial projects.
- **Federal (Commonwealth) government** — steps in under the **Environment Protection and Biodiversity Conservation Act 1999 (the EPBC Act)** when a project is likely to have a significant impact on a **Matter of**

National Environmental Significance (MNES) — a nationally threatened species, a World or National Heritage place, a Ramsar wetland, migratory species, the Great Barrier Reef, a nuclear action, or (for large coal and coal-seam-gas projects) the "water trigger." Such a project is a "**controlled action**" that needs separate **federal approval** from the Environment Minister. Following major reforms passed in late 2025, a new federal regulator — the **National Environmental Protection Agency** — began operating on 1 July 2026, and enforceable **National Environmental Standards** are being introduced in stages through 2026–2028. (The regime is mid-transition, so confirm the current position for your project.)

- **First Nations (Aboriginal and Torres Strait Islander peoples)** — hold rights and interests in land and cultural heritage that a project must respect. **Native title** (under the Native Title Act 1993) and state Aboriginal cultural-heritage laws protect Country and sacred sites. The 2020 destruction of the 46,000-year-old Juukan Gorge rock shelters in Western Australia — which led to national outrage, a Senate inquiry, and the resignation of a mining company's chief executive — showed both the stakes and the accountability that public pressure can force. Engaging and respecting the relevant Traditional Owners is essential, practically and ethically.

So which level decides your project? - A house, a subdivision, a shop, a small development → the **local council** (a DA). - A mine, a quarry, a large industrial or energy project, a big subdivision → the **state** (often as State Significant Development, decided by the minister or the planning commission), plus the state environmental licences. - Anything likely to significantly affect a nationally protected species or place — or a large coal/gas project affecting water → also needs **federal EPBC approval** as a controlled action. - Anything affecting native title or Aboriginal cultural heritage → engages **First Nations rights** and heritage law.

Big projects usually need approvals at more than one level at once — and each is a point where opposition can push, because a project that loses any required approval can be stopped.

The expert bodies (who advises and licenses)

For most significant projects, the decision-maker is advised by expert public bodies whose views carry weight: - The **state environment agency / Environment Protection Authority (EPA)** — pollution, licences, contamination. - **Water and natural-resource regulators** — water take, and native-vegetation clearing. - **Heritage bodies** — Aboriginal and historic heritage. - Federally, the environment department (**DCCEEW**) and the new **National Environmental Protection Agency**. Getting one of these bodies to raise a formal objection or impose strict conditions is one of the most valuable things a campaign can achieve.

How a decision is actually made — the journey of an application

1. **Application lodged** — a **DA** to the council, or a **State Significant Development** application to the state, and/or a **referral** to the Commonwealth under the EPBC Act. For larger projects this includes an **Environmental Impact Statement (EIS)** — the applicant's own report on the project's likely effects.
2. **Public exhibition and submissions** — the application is placed on **public exhibition** and **anyone can make a submission**, objecting or supporting. Volume and quality of submissions matter (at Rocky Hill, 90% of 2,308 submissions objected).
3. **Assessment** — planning staff assess the project against the planning rules and the submissions and write a recommendation.
4. **Decision** — made by the council, the state planning minister, or an independent commission (in NSW, the **IPC**); federally, by the Environment Minister or the new agency.
5. **Merit appeal** — in several states a specialist court or tribunal can re-decide a planning matter on its merits (NSW: the **Land and Environment Court**; Victoria: **VCAT**; Queensland: the **Planning and Environment Court**). This is how Rocky Hill was refused.
6. **Judicial review** — a decision that is *unlawful* (not merely one you dislike) can be challenged in court.

The rulebook — the laws that decide the outcome

- **The local planning instrument** (local environmental plan / planning scheme) and the **state planning act** (in NSW, the **Environmental Planning and Assessment Act 1979**).
- **State environmental-assessment requirements** and the pollution, water, and native-vegetation laws.
- **The federal EPBC Act 1999** (as reformed in 2025) — MNES, controlled actions, the water trigger, and the new **National Environmental Standards**.
- **The Native Title Act 1993** and state Aboriginal cultural-heritage laws.

Follow the money — why the system often leans toward "yes"

- **Councils** are funded largely by **rates** (property taxes) and gain from **developer contributions** toward local infrastructure, so new development can mean revenue and jobs.
- **States** collect **mining and petroleum royalties** — often very large sums — and depend on resource industries for jobs and revenue, which creates strong political pressure to approve mines, quarries, and gas.
- **Proponents** are usually well-resourced companies that can pay for the consultants and lawyers who prepare and defend the project.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The courts and tribunals** — the **Land and Environment Court** and equivalents can overturn unlawful decisions and, on a merit appeal, substitute a refusal (as at Rocky Hill).
- **Auditors-General and Ombudsmen** — investigate misspending and maladministration.
- **Anti-corruption commissions** — Australia has unusually powerful ones: the federal **National Anti-Corruption Commission (NACC)** and long-standing state bodies (NSW **ICAC**, Victoria **IBAC**, Queensland **CCC**). Anyone can refer a matter (see Section 11).
- **The National Environmental Protection Agency** — the new federal environmental regulator (from 1 July 2026).

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In Australia, the variables most likely to push a campaign above these ranges are a merit appeal in a specialist court (which can refuse a project outright) and a strong federal EPBC challenge (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (AUD)	What "Success" Means
Documentation Only	5-10%	3-4 months	\$5K	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	\$16K	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	\$20-60K	Slow, often loses on its own
Media Only	10-15%	3-6 months	\$6K	Public knows, but no action
Docs + Opposition	25-35%	12 months	\$21K	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	\$60K	Stronger legal arguments, slower
Opposition + Legal	35-45%	12-18 months	\$65K	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	\$22K	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	\$65K	Consent refused/modified or project delayed

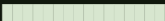
Key insight: All five steps together = 3-4x more effective than any single step.

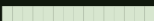
A note on legal cost: the Environmental Defenders Office and other public-interest lawyers can run strong cases free of charge or at reduced cost, and open-standing provisions mean communities can get to court — so the "Legal" figures above are not a hard floor.

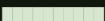
Effectiveness Visualization

SUCCESS PROBABILITY (Consent Refused/Modified/Withdrawn)

CLEAN DECISION SCENARIO:

All 5 Steps Combined:  65-75%
Same chance as: a coin coming up heads twice (75%)

4 Steps Combined:  55-65%
Same chance as: a forecast of 60% rain being correct

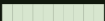
3 Steps Combined:  45-55%
Same chance as: a single coin flip (50%)

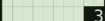
2 Steps Combined:  30-40%
Same chance as: drawing a face card from a deck

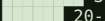
Single Step:  5-20%
Same chance as: rolling a specific number on one die

WITH MODERATE TILT FACTORS:

(Strong pro-resource policy, royalty dependence, or proponent-funded assessment)

All 5 Steps Combined:  40-45%

4 Steps Combined:  30-40%

3 Steps Combined:  20-30%

2 Steps Combined:  15-25%

Single Step:  3-12%

WITH SEVERE TILT FACTORS:

(State-significant designation, proponent-only assessment, heavy political backing)

All 5 Steps Combined:  25-30%

4 Steps Combined:  18-24%

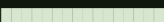
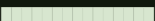
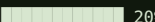
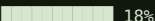
3 Steps Combined:  12-18%

2 Steps Combined:  8-15%

Single Step:  2-8%

One important point: a merit appeal to a specialist court can refuse a project on public-interest and climate grounds even where the politics favour it — as the Land and Environment Court did at Rocky Hill — and a clear legal defect, or a failure to properly assess a nationally protected matter under the EPBC Act, can quash an approval regardless of the politics.

Step Importance Ranking (When All Combined)

1. OPPOSITION BUILDING (Step 3)  25%
Why: creates political pressure, visible to decision-makers, enables other steps
2. DOCUMENTATION (Step 2)  22%
Why: provides ammunition for legal/media, grounds opposition in facts
3. MEDIA STRATEGY (Step 5)  20%
Why: makes opposition/legal/documentation visible, creates political cost
4. LEGAL CHALLENGES (Step 4)  18%
Why: buys time, creates planning/court pressure — and holds the merit-appeal and EPBC levers
5. TARGET ID (Step 1)  15%
Why: foundation — if wrong, everything fails

Real insight: a large, organised, visible community that has also lodged sharp, well-grounded submissions on the record is more persuasive than perfect documentation or a brilliant legal argument standing alone.

STEP 1: TARGET IDENTIFICATION

Time to complete: Weeks 1-4 **Cost:** \$0 **Outcome:** A clear picture of what you're fighting, who decides, and when the decision is final

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: "Environmental damage" But: "The mine clears 200 hectares of habitat for a nationally listed threatened species, and takes water from an aquifer that feeds the town's supply."

Not: "Pollution" But: "The project adds an estimated [X] µg/m³ of fine particle pollution (PM2.5) over the nearest homes of 1,500 people, in an area already near the air-quality standard."

Not: "Community harm" But: "The coal from this mine, when burned, will release an estimated [X] tonnes of greenhouse gases — a cumulative contribution to climate change a court can weigh in the public interest."

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. A nationally listed species, a Ramsar wetland, or a big water take can also trigger **federal** assessment — a second front.

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **The local council** — for most DAs, decided by council staff or the elected councillors.
- **The state planning minister or an independent commission** — for **State Significant Development** and other major projects (in NSW, the **Independent Planning Commission**).
- **A state agency** — for the environmental licences (pollution, water, vegetation) and mining/petroleum leases a project also needs.
- **The federal Environment Minister / the National Environmental Protection Agency** — if the project is a **controlled action** affecting a nationally protected matter under the EPBC Act.

Write it down concretely: "[Council/Commission] decides on [date]. The EPA has been asked to comment. The project has been referred to the Commonwealth and a 'controlled action' decision is due on [date]. The proponent can appeal a refusal to the Land and Environment Court."

Question 3: What Specific Action Stops It?

Not: "Stop the project" But: "Persuade the consent authority to refuse" — or, if refusal is unrealistic, "secure strict conditions: a protected buffer, an independent environmental management plan, a water make-good agreement, and a rehabilitation bond."

Not: "Protect the environment" But: "Show the EIS fails to properly assess [the impact on the listed species / the cumulative climate impact / the water impact], so the assessment is inadequate."

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if refused unlawfully, become the ground for a legal challenge.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. Applications go on **public exhibition** with a submission period (often around 28 days, sometimes longer for big projects). Merit-appeal and judicial-review rights run to statutory deadlines that can be short. Map every date: the exhibition/submission close, the assessment, the decision, any EPBC decision, and the window to appeal or challenge it.

Question 5: Are There Documented Financial or Policy Pressures?

This is the tilted-system assessment question. Know it BEFORE you organise: - Is there strong state **policy** or **royalty** dependence favouring the project (a mining or energy priority)? - Is the EIS funded and written by the proponent only? - Does the council or state depend on the development for jobs, revenue, or a royalty stream? - Has the project been declared **State Significant** — moving the decision away from the local council? - Does the proponent have deep resources for consultants, barristers, and appeals?

Why this matters: if strong policy or royalty pressure or proponent-controlled assessment is present, opposition must overcome different barriers (Section 10). It doesn't mean opposition can't work — it means realistic expectations and, often, a focus on conditions and on legal and assessment defects rather than a straight political refusal.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Time to complete: Months 1-4 **Cost:** \$5,000-6,000 (AUD) **Outcome:** Three polished reports (30+ pages total) showing

specific, quantified harms

Success Rate (Documentation Alone): 5-10% Success Rate (Documentation + Opposition): 25-35% Success Rate (Documentation + Opposition + Legal + Media): 60-75%

The Three Documentation Layers

Documentation turns vague opposition ("This is bad") into undeniable evidence ("This specific harm will occur to these specific people/places at these specific costs"). Success comes from three layers working together.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

What it is: comprehensive documentation of existing conditions BEFORE the project begins.

Why it matters: proponents claim "the site is already degraded" or that baseline is unimportant. Baseline documentation proves what was there — and it cannot be reconstructed later.

Documented case — Bulga and the Warkworth coal-mine expansion

The village of Bulga, in the NSW Hunter Valley, faced the expansion of Rio Tinto's neighbouring Warkworth open-cut coal mine — an expansion the State had approved that would have mined into a biodiversity offset set aside under the mine's existing consent. The residents' small community group, the **Bulga Milbrodale Progress Association**, took the approval to the **Land and Environment Court** on a merits appeal and put in the evidence the approval had waved through: the value of the endangered **Warkworth Sands Woodland** (an ecological community found only there, and home to the threatened squirrel glider and speckled warbler), and the noise, dust, and social impacts on the village.

In *Bulga Milbrodale Progress Association Inc v Minister for Planning and Infrastructure and Warkworth Mining Ltd* [2013] NSWLEC 48, Chief Judge Preston **refused the expansion**, finding its biodiversity, noise, and social impacts unacceptable and its offsets inadequate. The NSW Court of Appeal unanimously dismissed the company's appeal ([2014] NSWCA 105), and the company was ordered to pay the Association's costs. (The company later relodged a modified application — a reminder that a win often has to be defended more than once.) The Association was represented by the **Environmental Defenders Office**.

Why it matters for you: a village association, not a big NGO, changed the outcome — by putting careful evidence of specific, local harms in front of a court that had to weigh them.

Building your own baseline (typical process). Document existing conditions before the project starts, because a proponent will claim a site is "already degraded" and baseline cannot be reconstructed later. A workable approach: monthly surveys across a season cycle of the site plus upstream/downstream reference points; a species inventory with grid references, flagging anything listed as threatened under the **EPBC Act** or state law that the proponent's ecology report omitted; proximity to any nationally protected place (World/National Heritage, Ramsar wetland) or state conservation area; and hydrology (pH, dissolved oxygen, temperature, seasonal flow), including any impact on a water resource (the EPBC **water trigger** for big coal/gas). Typical cost is around \$5,000 for an ecological consultant, GPS, and water-testing supplies — reducible with knowledgeable volunteers. Dated seasonal photographs and grid-referenced maps make it credible.

LAYER 2: IMPACT ANALYSIS

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just "something bad" but "specifically THIS BAD in THIS WAY" — and it maps directly onto what an **Environmental Impact Statement** must properly assess.

Use the proponent's own words and the assessment rules. For a big project the proponent must produce an EIS assessing the likely significant impacts. Powerful, documentable weak points in Australian assessments include: -

Threatened species and MNES. If the project will significantly affect a nationally listed species or place, it must be assessed and approved federally as a **controlled action**; an assessment that understates the impact is vulnerable. -

Cumulative and climate impacts. Courts here have treated a coal project's greenhouse-gas emissions (including from burning the coal) as a relevant impact in the public-interest balance — the Rocky Hill reasoning. An EIS that ignores or downplays cumulative and climate effects is a target. - **Water.** For large coal and coal-seam-gas projects, impacts on water resources are a specific federal trigger and a frequent weak point.

Convert each of the proponent's admissions ("some turbidity during construction," "temporary habitat loss") into a quantified prediction against your baseline.

Outcome (illustrative): an EIS found inadequate on species, water, or cumulative/climate impacts can be sent back, adding months or years and forcing redesign — or can ground a refusal on the merits or a court challenge.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. "X habitat affected" matters less than "an estimated 45 additional respiratory cases a year, and \$X of health-system cost."

Method: use recognised air-quality modelling and the epidemiological literature to translate emissions into health outcomes, then attach costs. Public-health evidence and peer-reviewed studies let you estimate additional respiratory and cardiovascular cases and their cost for the affected population — additional asthma, hospital admissions, lost workdays, and total annual and lifetime cost.

Outcome (illustrative): an independent health analysis can move a council or commission, prompt the EPA to impose strict conditions, and force pollution controls the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Hire an ecological consultant (or use knowledgeable community members — naturalists, retired scientists, students); set a seasonal survey schedule; document conditions. **Deliverable:** a 20-30 page baseline report with species/habitat inventory, water-quality data, seasonal patterns, dated photographs (same spots across seasons), and grid-referenced maps.

Phase 2: Impact Analysis (Months 2-3)

Obtain the proponent's EIS and planning documents from the exhibition portal; identify specific impacts; test the EIS against the assessment rules (species/MNES, water, cumulative and climate effects). **Deliverable:** a 20-30 page impact analysis with quantified predicted impacts, comparison to baseline, and the proponent's own admissions quoted back.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the decision.
- **Only environmental data.** Add health and economic impacts — the arguments that move decision-makers and the public.
- **No independent check.** A report the consent authority can dismiss as "campaign material" is far stronger after an independent expert reviews it (budget \$800-1,200).
- **Ignoring the proponent's own admissions.** Their EIS is your best source; quote it against itself.

Documentation Budget Breakdown (AUD)

Item	Cost	Notes
Ecological consultant (baseline + species ID)	\$3,200	Threatened-species surveys
GPS / survey equipment	\$400	Mapping/documentation
Water-quality testing supplies	\$350	Sampling across seasons
Independent expert review	\$1,000	Credibility

Printing/distribution	\$300	Copies for decision-makers
TOTAL	\$5,250	Reducible using knowledgeable community members

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what wins a case already exists in public records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

Start at the deciding body's register and the local council's own website. In Australia the official documents for a project — the development application, the Environmental Impact Statement, the public-exhibition notices, the assessment report — are posted by the body running the review: the local council or state planning department for most development, the state environment agency, and the federal Department of Climate Change, Energy, the Environment and Water for matters of national environmental significance under the EPBC Act. The official documents for most local projects live on the local council's own website (planning applications, notices, agendas), so check those pages weekly. The legal clock often runs from what is posted there.

The project file and the Environmental Impact Statement. Get the developer's Environmental Impact Statement as soon as it is posted — it is public, and it is where the developer admits harm in its own words.

Baseline environmental data. State environment-agency data on water and air; state and federal protected-species databases (including the EPBC protected-matters search); and the developer's own EIS baseline studies.

Ownership and money. Company ownership and directors from ASIC; land title from the state land-titles office; and MPs' and councillors' interest registers and political-donation disclosures.

Case law and precedent. **AustLII** (austlii.edu.au) gives free access to Australian judgments — including the NSW Land and Environment Court and other environment courts.

How to force a document open. A **Freedom of Information / Right to Information** request (federal or state) and government-information access laws (e.g. NSW GIPA) compel disclosure of records a body holds. Use the request wording in Section 8E.

Free and low-cost help. The **Environmental Defenders Office (EDO)** provides free environmental legal advice and litigation across Australia. Some university clinics and community legal centres also assist.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the deciding authority, and the local-ally entries point you to the organisations and legal help already working nearby. Pull that thread first, then follow it into the registers above.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Time to complete: Months 2-6 (foundation), 6-12 (sustained) **Cost:** ~\$16,000 (AUD) for a full year **Outcome:** 50-100 core people, 5-10 organisations, sustained organisation

Success Rate (Opposition Alone): 15-20% **Success Rate (Opposition + Documentation + Legal + Media):** 60-75%

Critical Insight About Organising

Most opposition campaigns fail not because they can't build opposition, but because opposition burns out after 4-8 months. You need structures that prevent it.

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don't join movements from flyers; they join from relationships. Identify the 15-20 people most affected or interested. **Phone** each (not email) for an hour. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do. Each person has a different concern (property value, health, water, traffic, a place they love, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern, not around "opposition": - **Property/amenity group** — property values, traffic, dust, loss of a place - **Water/agriculture group** — water take, bores, flooding, farmland - **Health group** — air quality, dust, noise - **Environment group** — threatened species, bushland, cumulative and climate effects. Each group meets monthly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Coalition Structure (Early)

Formalise coordination: a name; the participating groups; a decision-making process (consensus or vote); a meeting schedule; a communication method; and a conflict-resolution process. A **written agreement** prevents "the coalition fell apart because one group went rogue."

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting

Hold a public meeting where the community sets out its concerns to itself, to councillors and the local MP, and to press. A serious, informational **public meeting** carries more weight with decision-makers than a protest at launch. Typical 3-hour shape: welcome → project explanation → community concerns (each person 3-5 minutes) → expert Q&A (an ecologist, a health voice, a planning/legal voice) → next steps. Invite your councillors and state MP.

Step 2b: Opposition Materials (Factsheets)

One page. Decision-makers won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the evidence base → contact/resources. Print 1,000; distribute at shops, libraries, medical centres, the community noticeboard; post a digital version. Cost: ~\$300.

Step 2c: Submissions on the Record (the Australian petition equivalent)

The most valuable "signatures" are **individual submissions lodged during public exhibition**, each raising real planning and environmental grounds, plus a **petition** for the wider count. Help residents lodge submissions through the exhibition portal, each in their own words, citing specific grounds (impact on a listed species, water, air quality, traffic, inconsistency with the planning instrument, cumulative and climate impacts). Volume plus quality shapes the assessment report and the decision — at Rocky Hill, 90% of 2,308 submissions objected. Cost: ~\$60.

Step 2d: Media Coverage at Launch

Release data + submissions together = a story. (Full media-release example is in Section 9, 9G.) Phone reporters, then email the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental groups (a local Landcare or bushcare group, the **Nature Conservation Council** or your state conservation council, a local branch of a national group), the relevant **Traditional Owner** organisation (respectfully, on their terms), farming and irrigator associations, business and tourism operators who lose from the project, faith groups, and residents' associations. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

Tailored asks: - **Conservation group:** "We need ecological expertise for our submission — can you review the biodiversity

chapter of the EIS?" - **Traditional Owner organisation:** "We want to understand and support your position on Country and cultural heritage — how would you like to be involved, if at all?" - **Irrigators/farmers:** "This threatens the aquifer — will you make a submission on the water impacts?" - **Tourism operators:** "This affects the landscape your business depends on — can you speak to the economic impact?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: environmental messaging to the conservation group; water to the irrigators; health to a health voice; media to whoever has the contacts; legal to the group working with the EDO or solicitors. Sequence activities so each builds momentum (coalition launch → data release → rally → submission-count milestone).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline.

Step 4a: Public Demonstrations

Monthly, same time and place, growing attendance — outside the council chambers, at the site, or at the state MP's office. Handle logistics: any required notifications, marshals, accessibility, and a sound system for 100+. Momentum matters: "50 rally" becomes "rally grows to 200." (Note that several states have tightened anti-protest laws — see Section 10 — so know the rules where you are.)

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (submission milestone → expert finding → coalition growth → rally → decision date).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout (Months 4-8). Prevent it: monthly (not weekly) meetings; celebrate milestones; fund one part-time coordinator (~\$500-800/month) so volunteers don't carry logistics; schedule breaks; keep a public progress tracker. Campaigns that bring in a part-time coordinator when founders tire tend to last for years; those that don't often collapse around month six.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership.

Failure Point 3: Competing Funding. Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (500 submissions, a 200-person rally, the EPA seeking more information) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (AUD)

Item	Cost
Factsheet printing (1,000 copies)	\$320
Website/email hosting (annual)	\$200
Meeting/venue hire + supplies	\$450
Outreach travel	\$400
Submission/petition materials	\$60
Demonstration supplies (signs, sound)	\$600

Coalition meeting costs	\$220
Part-time coordinator stipend (8 hrs/wk × \$22/hr × 52)	\$9,152
Social-media management (3 months part-time)	\$1,600
Fundraiser/event costs	\$700
TOTAL	\$13,702

Funding the campaign. Money typically comes from four places: individual donations (local collections, online crowdfunding such as Chuffed or GoFundMe, and dedicated legal-cost appeals); grants from environmental and community funders (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). Aim to raise half the budget by month 6 and the rest by month 12.

Reductions: use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~\$9,000.

STEP 4: LEGAL CHALLENGES — USING THE PLANNING SYSTEM AND THE COURTS

Time to complete: 3-24 months (depends on track) **Cost:** \$0-60,000 (AUD; the EDO and open-standing rules can make this far cheaper) **Outcome:** refusal, conditions, delay, or a decision set aside

Representation impact: - Experienced environmental/planning lawyers and counsel: 35-45% favourable-outcome likelihood - General or less specialised representation: 25-35% - Self-representation: 5-15% - **A key advantage:** the **Environmental Defenders Office (EDO)** — Australia's largest environmental legal centre — runs public-interest cases for communities free of charge or at reduced cost, and standing to sue is comparatively open (below), so a well-founded challenge is not gated by wealth.

Success Rate (Legal Only): 20-30% **Success Rate (Legal + Opposition + Media):** 60-70%

Australian legal strategy has three tracks, and the second is unusually powerful here.

TRACK 1: PLANNING PARTICIPATION (the front door)

Most fights are won here, on the record, before any court is involved.

- **Lodge a submission during public exhibition.** Anyone can make a submission on a DA, an EIS, or an EPBC referral. Submissions that cite real **planning and environmental grounds** — inconsistency with the planning instrument, impact on a threatened species or a nationally protected place, water, air quality, cumulative and climate impacts — carry weight; "we don't want it" carries little. Volume plus quality shapes the assessment report.
- **Speak at the hearing.** Where an independent commission (in NSW, the **IPC**) holds a public hearing on a major project, register to speak. A clear statement from residents, and pressure on your councillors and state MP, matters in close cases.
- **Turn the agencies.** Persuading the **EPA**, the water regulator, a heritage body, or the council's own experts to object or demand strict conditions is one of the most valuable outcomes a campaign can achieve — a consent authority is reluctant to approve over an expert objection.
- **Engage the federal process.** If the project is referred under the EPBC Act, make a submission at the "controlled action" and assessment stages. A project needs *all* its approvals, so a single successful point — state or federal — can stop it.

Why this track matters: lodging well — specific, on time, grounded in the planning instrument and the evidence — often does more than lodging loudly, and it builds the record you'll need for Tracks 2 and 3.

TRACK 2: THE MERIT-APPEAL AND EPBC LEVERS (the strongest cards)

Two features make this the most powerful legal tool available to Australian communities.

1. Merit review in a specialist court. In several states a specialist court or tribunal can re-decide a planning matter **on its merits** — standing in the shoes of the decision-maker and weighing the evidence afresh — and can **refuse a project outright**. The landmark is *Gloucester Resources Ltd v Minister for Planning* [2019] NSWLEC 7: the NSW **Land and**

Environment Court (Chief Judge Preston) upheld the refusal of the Rocky Hill coal mine, finding it in "the wrong place at the wrong time," with the project's contribution to **climate change** among the reasons. A community group (Groundswell Gloucester), represented free by the EDO, was joined as a party. Merit-appeal rights vary: sometimes objectors have their own right of appeal (for "designated development" in NSW); more often the merits court is reached through the **applicant's** appeal against a refusal, which a community group can seek to join — which is exactly how Rocky Hill was won.

2. The federal EPBC approval — a separate hurdle. If a project will significantly affect a **Matter of National Environmental Significance** — a listed species, a World/National Heritage place, a Ramsar wetland, migratory species, the Great Barrier Reef — or, for big coal and gas, the **water trigger**, it is a **controlled action** needing **separate federal approval**. That is a second decision, with its own assessment, public comment, and challenge points; and a decision that fails to properly consider a protected matter can be set aside in the **Federal Court**.

Open standing — why you can get to court. Australian law is comparatively generous on **standing** (the right to bring a case). Under the NSW planning act, "**any person**" may bring proceedings to remedy or restrain a breach of the Act, and under **section 487 of the EPBC Act**, standing for judicial review extends to individuals and organisations engaged in environmental protection or conservation. Combined with the EDO, this means a community with a genuine legal point can get it before a court.

TRACK 3: JUDICIAL REVIEW

When a decision is unlawful, you challenge it in court — the **Land and Environment Court** (in its judicial-review jurisdiction) for state decisions, or the **Federal Court** for EPBC decisions. Judicial review is about **legality, not merits**: common grounds are a failure to consider a mandatory matter (for example, a protected matter under the EPBC Act), an inadequate or legally flawed assessment, a denial of procedural fairness, **apprehended bias**, or an error of law. Deadlines can be short — get advice quickly.

Who can help — often free. The **Environmental Defenders Office (EDO)** runs public-interest environmental litigation for communities; some private firms and barristers act pro bono or at reduced cost; and legal costs can be crowdfunded. Ask early — the EDO can advise on grounds, standing, and the crucial question of costs.

Legal Strategy Decision Tree

```
START: Is an application or EPBC referral on exhibition?
├ YES → Lodge submissions NOW (Track 1). Build the record.
└ NO → Has a decision already been made? Note the appeal / judicial-review deadlines (can be short).

Q1: Is there a legal defect, or a merits case a court could re-decide?
├ NO (lawful process, you just disagree) → No strong challenge; focus on opposition + media.
├ UNCLEAR → Free initial advice from the EDO.
└ YES (protected matter not properly assessed; inadequate EIS; cumulative/climate impact ignored; procedural unfairness; a strong merits case) → Continue.

Q2: Budget?
├ $0 → Approach the EDO; crowdfund; rely on open standing.
├ $0-10K → EDO-supported or lawyer-led judicial review / merits appeal.
└ $10-60K → Full merits appeal or judicial review + interlocutory relief, with opposition + media.

Q3: Is harm imminent once works start?
├ YES → Ask the court for an injunction / stay pending the hearing.
└ NO → The challenge proceeds on the normal timetable.

RECOMMENDED PATHS
Path A — Merits case in a specialist court (the Rocky Hill pattern): join or bring a merits appeal, with the EDO + Track 1 record + media. Highest ceiling.
Path B — Clear legal defect / EPBC failure: judicial review in the LEC or Federal Court.
Path C — No legal or merits point: don't litigate. Win it politically on the record and in the press.
```

Litigation Success Factors

Litigation succeeds when **combined** with the other steps: - Litigation alone: 20-30% - Litigation + opposition: 35-45% - Litigation + opposition + media: 50-70% - A strong merits case, or a clear failure to assess a protected matter, can exceed these — as the Rocky Hill refusal showed — because the court applies a standard the decision-maker cannot ignore.

A court that sees a genuine merits case or legal defect, plus visible organised opposition, plus press coverage, treats the matter as serious and is likelier to grant relief.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build opposition; litigate with it visible.
- **Missing the deadline.** Appeal and judicial-review windows can be short and strict.
- **Weak grounds.** "This project is harmful" is a planning opinion, not a legal ground. "The assessment failed to consider the impact on a nationally listed species, contrary to the EPBC Act" is a ground a court can rule on.
- **Ignoring the EDO and open standing.** Don't assume you can't afford court, or that you lack standing — check first.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific legal ground. Here is how the records you gathered map onto the arguments that most often succeed in Australia — so you file the right fact against the right rule.

A jurisdictional or process error → judicial review. An approval made without power, or through a legally flawed process. Feed it with: the assessment record and the step that was skipped.

A flawed EIS → merits or judicial review. Ignored significant impacts, no real alternatives, or inadequate assessment of a threatened species. Feed it with: the EIS gaps and your expert critique.

A matter of national environmental significance not properly assessed under the EPBC Act → federal challenge. Feed it with: the protected-matters evidence and the referral's treatment of it.

Merits review where it's available. In some states (notably NSW) objectors or applicants can seek review of the decision on its merits in the Land and Environment Court, not just its legality. Feed it with: your full evidence file.

Conditions breached → enforcement. Feed it with: the conditions and dated evidence of breach.

The pattern: match one clean, documented defect to one clear ground, and lead with the procedural ones — they can undo an approval without your having to win the argument about whether the project is "good." The Environmental Defenders Office can tell you fast which ground is live.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Time to complete: the full 12-month campaign **Cost:** ~\$6,000 (AUD) for trained spokespeople + ongoing support

Outcome: regular coverage reaching a large audience, political pressure on decision-makers

Success Rate (Media Only): 10-15% **Success Rate (Media + Opposition + Documentation + Legal):** 60-75%

Australia has a strong national and regional press, a public broadcaster, and dedicated investigative outlets that cover exactly these fights — and a record of that coverage shifting outcomes.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don't care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION - **Bad:** "Residents oppose the project." (no data, no specific consequence, nothing new) → ignored. - **Good:** "Independent survey finds a threatened species the proponent's report missed; the commission decides on [date]." → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Regional press** and **ABC** local radio and news — the audience that reaches your councillors and state MP.
- **The Guardian Australia** and national desks — for projects with wider significance.
- **The Saturday Paper, Michael West Media**, and other investigative outlets — for deeper accountability stories.
- The business press (e.g., the **Australian Financial Review**) — for the proponent's investors and financiers.

Building Reporter Relationships (The Key)

Reporters don't ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local/regional reporters (environment, health, rural, local-government rounds). **Phone** first: "I saw your piece on [similar story]. We've got a similar situation in [place] and I think your audience should know." Then keep the relationship warm over months — a relevant article, a data tip, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (call five reporters)
- Month 2: first story (submission milestone)
- Month 3: press event releasing the survey/study; expert available
- Month 4: coalition announcement
- Month 5: rally coverage
- Month 6: decision-date coverage

Real Media Dynamics (Australian grounding)

- **Coverage plus law defeats a project:** the Rocky Hill fight combined years of local organising (Groundswell Gloucester), national coverage, and a decisive merits case — the mix that ended a project in a mining-reliant state.
- **A sustained campaign shifts finance and politics:** long-running, high-profile campaigns against major coal projects have combined community organising, media, and pressure on banks and insurers to influence a project's viability.
- **Independent evidence beats the proponent's report:** an independent ecological, water, or air-quality analysis that contradicts the proponent's optimistic EIS lets the press write "experts dispute proponent's figures," and regulators take notice.

Media Measurement

Track cumulative stories and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the planning instrument and the evidence — that is what gets read and acted on. The legal-challenge letter and media release are 8F and 8G.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [council/commission] decides [date]

Hi [Reporter first name],

I follow your coverage of [round / recent story]. We have something in [place] your audience should know about, and there's a clear news hook.

In one line: [independent survey / new evidence] shows [quantified finding – e.g. "a threatened species the proponent's EIS missed"], and [the council / the commission] decides on [date].

Why it's newsworthy: it's new (just released), specific (affects [# people / hectares / a listed species]), and time-sensitive (decision [date]).

I can send the full report and connect you with [one named expert] for an interview. Would a quick call this week work?

Thanks,
[Name] – [Group] – [phone] – [email]

8B. Email / letter to a councillor or state MP

Subject: Please [refuse / impose strict conditions on] [project] – application [ref]

Dear [Councillor / MP] [Name],

I am a resident of [ward/electorate] writing about application [reference] for [project], before [the council / the commission], with a decision expected [date].

The concern, briefly: [one or two specific grounds – e.g. "a significant impact on the [listed species] and on the town's water, and an EIS that does not properly assess the cumulative and climate impacts"].

I am asking you to [specific, achievable action – e.g. "call for the project to be refused," or "support strict conditions: a protected buffer, an independent management plan, a water make-good agreement, and a rehabilitation bond"].

[If true:] [#] residents have lodged submissions objecting, and these groups have concerns: [conservation council / farmers / Traditional Owner organisation].

I would welcome a meeting and can share our full evidence.

Yours sincerely,
[Name], [address in the electorate], [phone], [email]

8C. Submission to the consent authority (during public exhibition)

To: [council / department / the Commonwealth, via the exhibition portal]

Re: Submission objecting to application [reference], [project/site].
Exhibition closes [date].

1. Who I am: [name], [address], [interest in the application].
2. Grounds of objection (with evidence):
 - a. [Planning-instrument conflict] – the project conflicts with [zone objective / policy] because [reason].
 - b. [Threatened species / protected matter] – [evidence; the EIS omits [X]], engaging state threatened-species law and, if significant, the EPBC Act (a controlled action affecting a Matter of National Environmental Significance).
 - c. [Water] – impact on [aquifer/river], relevant to the EPBC water trigger.
 - d. [Cumulative and climate impacts] – the project's greenhouse-gas emissions, including from burning the product, are a relevant impact in the public interest (as in *Gloucester Resources v Minister for Planning* [2019] NSWLEC 7).
 - e. [Air quality / noise / traffic / heritage] – [evidence].
3. What I ask: that consent be REFUSED; alternatively, that these conditions be imposed: [list].

Please confirm this submission is registered and considered.

[Name] – [contact]
Attachments: [baseline / impact / health report]

8D. Coalition outreach email (to an organisation)

Subject: [Organisation] + [project] – a specific ask that fits your work

Hi [Name],

I'm [name] with [group] in [place]. We're working on [project], which [one-line stake]. I'm getting in touch because this connects directly to [organisation]'s work on [their aim].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "review the biodiversity chapter of the EIS," or "make a submission on the water impacts by [date]," or "co-lead the health message"].

If helpful, I can send a one-page brief and arrange a short call.

Thanks for considering it,
[Name] – [Group] – [contact]

8E. Records request (Freedom of Information / state access law)

Subject: Freedom of Information / access request – [project]

To: [agency / council information-access team]

Under the [Freedom of Information Act 1982 (Cth) / the relevant State access law, e.g. the NSW Government Information (Public Access) Act 2009 (GIPA)], I request the following information about [project / application reference]:

- correspondence between [council / the department / the EPA] and [proponent], [date] to [date];
- the proponent-commissioned studies underlying the EIS, and any agency review of them;
- records of meetings between officials and the proponent;
- [any specific document you know exists].

Please provide the information electronically within the statutory timeframe. If any information is withheld, please cite the specific exemption and the public-interest test.

[Name] – [contact]

8F. Legal challenge – letter of demand / notice

NOTE: Deadlines can be SHORT and STRICT. Merit-appeal and judicial-review windows vary by state and by decision. Standing is comparatively open (the NSW planning act allows "any person" to enforce the Act; EPBC s.487 extends standing for judicial review). Contact the Environmental Defenders Office (EDO) immediately – they may act free of charge and can advise on grounds, standing, and costs.

LETTER BEFORE PROCEEDINGS

[Date]

To: [decision-maker / proponent]

From: [claimant – resident / group], [contact]

1. The decision challenged: [consent / approval / EPBC decision], [reference], dated [date].
2. Basis:
 - Ground 1 – Failure to consider a protected matter: the assessment did not properly consider the impact on [a nationally listed species / a protected place / a water resource], contrary to the EPBC Act.
 - Ground 2 – [Inadequate EIS / cumulative and climate impacts not assessed / conflict with the planning instrument].
 - Ground 3 – [Denial of procedural fairness / apprehended bias / error of law].
3. Remedy sought: that the decision be set aside and remade lawfully; [if works are imminent] an injunction pending the hearing.
4. Please respond within [14 days] confirming whether the decision will be reconsidered, failing which proceedings will be commenced in the [Land and Environment Court / Federal Court].

[Name / solicitor / EDO] – [contact]

8G. Media release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: Town / Date]

[LEAD – answer "why now?"]
[Local group] released [study / findings] today showing [specific finding] affecting [# of people / hectares / a listed species].

KEY FINDINGS

- [Quantified impact with citation]
- [Quantified impact with citation]
- [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]
"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]
[The council / the commission] decides on [date]. Submissions close [date].

[CALL TO ACTION] To make a submission: [how, via the exhibition portal].
For more: [contact].

CONTACT: [Name / Group / Phone / Email]

ATTACHMENTS: full report, technical summary, methodology, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the budget branches, and the merit-appeal and EPBC levers that are often the strongest cards in Australia.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a year-long campaign. With an afternoon a week you can still do real damage to a bad project. In rough order of impact for the effort:

1. **Lodge a submission during public exhibition, before the deadline. One page naming one or two concrete grounds (a threatened species, water, the assessment's gaps). It goes on the record and must be considered.**
2. **Get the Environmental Impact Statement and quote its worst admission back to the assessing authority.** The developer's own words carry the most weight.
3. **Send one accurate email to a local reporter** (Section 8A). A single story raises the political cost and can reach a lawyer or expert.
4. **File one FOI / GIPA request** (Section 8E) — even if someone else uses it later.
5. **Point one legal centre at the fight.** The EDO may take it from there — you hand off, you don't have to lead.
6. **If the project affects a matter of national environmental significance, flag it federally under the EPBC Act** — that is a separate lever the state process can't close.
7. **Tell your neighbours the deadline.** Ten individual submissions beat your one.

Do only the first three and you've preserved the record, put the project in the press, and left a trail others can pick up.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because they depend on the development's money or jobs, rely on the proponent's own information, or face strong political pressure to say yes. It rarely means anyone broke the law. Here is how it works — and how communities win anyway.

Important Caveat

This section describes patterns from documented Australian dynamics and public policy — royalty and jobs dependence, proponent-funded assessment, state-significant designation that removes local control, and the tightening of anti-protest laws. It is not a statistical claim about "X% of all decisions." Read it as: "where these patterns appear, here is what happens and what it means for opposition."

What This Tilt DOES (and DOESN'T DO)

DOES: create financial incentive to approve (royalties, jobs, rates, developer contributions); bias information (proponent-funded environmental statements read optimistically); advantage well-resourced proponents (better consultants, barristers, appeals); route major projects to a **State Significant Development** process decided by the minister or a commission rather than the local council; and — a real feature in Australia — expose protesters to tough **anti-protest laws** and **civil injunctions**, so that direct action on site carries legal risk. **DOESN'T:** guarantee approval; make opposition impossible; remove the requirement to properly assess a protected matter; or prevent refusals, conditions, and delay.

Analogy: a tilted system is like playing with the pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, and your legal and merits grounds cleaner.

Documented Australian Dynamics

A merits court can override the politics (Rocky Hill). In a state that earns large mining royalties, the Rocky Hill coal mine was still refused — by an independent commission and then, on the merits, by the Land and Environment Court.

Lesson: even a politically-favoured project falls when the merits and the evidence are against it.

Proponent-funded assessment. Environmental statements are commissioned by the proponent. Independent survey work that contradicts them — a missed listed species, understated water or climate impacts — is one of the most valuable things a campaign can produce, and can turn a regulator.

State-significant designation. When a project is declared State Significant, the local council no longer decides. Opposition then shifts to the commission's process and to the merits and legal grounds, where the merit-appeal and EPBC levers still apply.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): council or commission decides with genuine independence; no overriding resource priority; a clear legal or merits case exists; agencies have concerns. → 65-75% with all 5 steps. Proceed with standard opposition.

YELLOW FLAG (moderate tilt): strong resource/royalty policy and proponent-funded assessment, but independent evidence is possible and a merits or legal ground is arguable. → 40-45% with all 5 steps; often win conditions even if not a refusal. Proceed; prioritise the merits/EPBC ground and conditions.

RED FLAG (high tilt): state-significant designation; heavy political and royalty backing; challenge relies on interpretation. → 25-30% to stop; 50-60% to modify/delay. Decide whether delay/conditions justify the investment; lead with the cleanest merits or legal ground; build power for the next fight.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

When planning and legal routes are exhausted, some Australian communities and land and climate defenders have engaged in direct action — occupations and blockades of mines, forests, ports, and infrastructure. This is descriptive of what has occurred, not guidance.

Documented consequences under Australian law: several states have passed tougher **anti-protest laws** in recent years, carrying large fines and, in some cases, imprisonment — and courts have struck down some provisions (the High Court struck down Tasmania's anti-protest law in *Brown v Tasmania* (2017) as incompatible with the constitutionally implied freedom of political communication). Proponents also obtain **civil injunctions** protecting a site; breaching one is contempt of court. A criminal record can affect employment and travel. Direct action has produced delay and disproportionate media attention in documented cases, but on its own rarely stops a project permanently; combined with legal and organising work it is more consequential. Anyone considering it should understand the specific legal risks — including the anti-protest laws in their state, and injunctions — and take legal advice first.

Honest Assessment

Where the system is tilted, opposition using planning and legal methods has lower odds of an outright stop — but still

reliably wins refusals or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record for challenge. And Australia offers genuine equalisers: a merits court that can refuse a project on public-interest and climate grounds, a separate federal approval that must properly assess protected matters, open standing, and free legal help. Neither scenario makes opposition futile.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and it looks different in each institution. Read your situation actor by actor — the type of capture changes which lever works, and sometimes tells you a lever is closed. Handle this carefully: the same facts that can sink a project can expose you to a defamation suit if you get them wrong.

Councillors and council planners. The most common pressure point: a council keen on the rates and jobs, or a councillor with a developer tie. Signs: a sudden reclassification or rezoning, a rushed vote, a report that ignores its own evidence. Lever: the councillor code of conduct and pecuniary-interest rules — a member who should have declared and stood aside but voted can taint the decision.

The state environment agency and planning department. Capture here is usually softer — political direction to approve, or reliance on the developer's own consultants. Signs: an assessment that reads as the developer's document. Lever: judicial review, or merits review where the state allows it.

The developers. Watch for land assembled quietly before a project is public, shell companies, and revolving-door hires of former officials or regulators. ASIC, land-titles, and donation-disclosure records surface the timeline a journalist needs.

The courts. Australia has independent courts and, in several states, specialist environment courts — a real advantage. The constraints are cost and standing; seek advice on costs protection, and where work could start, an injunction, rather than relying on a slow final hearing.

Ministers and MPs and priority projects. Where a project is a stated state or national priority, expect the whole chain to lean toward yes. That is not corruption, but capture of a kind; the honest path is procedural rigour plus public pressure.

How to act on it, safely. Document from public sources before you speak. Route serious allegations through lawyers and the proper bodies — the relevant state anti-corruption commission (e.g. ICAC, IBAC, CCC), the ombudsman, the auditor-general, and the police for crimes — not social media. A reckless public accusation can expose you to defamation liability and hand the developer a way to change the subject.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

Months 1-2 — Foundation + Documentation: identify the target and decision-maker (Step 1); begin baseline surveys (Step 2); start one-to-ones and affinity groups (Step 3); lodge early submissions and make first reporter calls (Steps 4-5). *Outcome:* structure forming, the record beginning.

Months 2-3 — Public Launch: baseline complete; public meeting + submission drive (Step 3); media event (Step 5). *Outcome:* opposition visible, hundreds of submissions lodged, 3-5 stories.

Months 3-4 — Coalition + Impact Analysis: complete impact analysis testing the EIS (Step 2); expand the coalition and engage agencies and Traditional Owners (Step 3); take legal advice from the EDO and prepare grounds (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal/merits grounds identified, coverage expanding.

Months 4-6 — Expansion + Health Data: health/economic report (Step 2); sustained monthly rallies (Step 3); commission hearing or decision (Step 4); expert press events (Step 5). *Outcome:* agency concerns, quantified impacts, regional media.

Months 6-9 — Escalation + Challenge: rallies escalating (Step 3); if approved, merits appeal or judicial review with the EDO, within the deadline (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, court process live.

Months 9-12 — Peak Pressure + Positioning: maintain opposition (Step 3); hearing / positioning (Step 4); media

momentum (Step 5). *Outcome*: planning + opposition + media + law compound; refusal, conditions, set-aside, or withdrawal.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — "refuse for conflict with the planning instrument and a failure to assess the listed species," not "we oppose the project."
2. **Multi-tactic pressure** — submissions + opposition + media + legal, together.
3. **Long-term organising** — sustain 12+ months; prevent burnout.
4. **Documentation first** — build the evidence, then submit and litigate on it.
5. **Coalition building** — 5-10 diverse groups, and engage the agencies and Traditional Owners.
6. **Political pressure, not just legal** — the record and the press create the cost; the law buys time and can refuse or set aside.
7. **Use the legal levers** — a merits appeal and the federal EPBC approval are often the strongest cards.
8. **Realistic expectations** — expect conditions/modifications/delay; a refusal, set-aside, or withdrawal is the bonus.
9. **Persistence** — plan for 12-24 months and keep momentum.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); coalition members leaving (conflict or leadership problem); no media coverage for 2-3 months; the legal challenge stalling or a missed deadline approaching; fundraising below half your target by month 6; a core organiser leaving without a successor; or someone new pushing illegal tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Consent refused / project withdrawn** (rarer): usually needs overwhelming opposition + a strong merits or legal case + heavy media + low tilt. Rocky Hill (refused on the merits, climate a key ground) shows it happens.
- **Consent modified** (most common victory): conditions, buffers, independent management plans, water make-good, rehabilitation bonds, redesign — frequently via the commission or a court.
- **Delay / attrition**: stalled for years while planning and legal battles proceed; costs mount and financiers lose confidence; the proponent sometimes walks away.
- **Defeat**: the project proceeds. Focus then shifts to enforcing conditions, monitoring compliance, and the next opening.

Decision Point: Continue, Modify, or Reassess

Continue if the merits or legal grounds are live, opposition is holding or growing, media is at least monthly, the coalition is stable, and the decision is not imminent. **Modify** if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, or you discover the system is more tilted than assessed. **Reassess** if, after ~12 months, planning and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, or resources are gone. Ask: has opposition already won partial victory (conditions, delay)? Would more effort win more, or just prolong the fight? Should energy shift to enforcing conditions, to the next project, or to changing the policy?

The Bottom Line

Opposition work can stop or significantly modify destructive projects in Australia — even where royalties, jobs, and resource policy point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, and in the courts. Where the system is tilted, an outright stop is less likely, but opposition still delivers refusals, conditions, delay, and durable power.

And Australia offers genuine equalisers: a specialist merits court that can refuse a project on public-interest and climate grounds — as it did at Rocky Hill — a separate federal approval that must properly assess nationally protected matters, comparatively open standing, and free expert legal help from the Environmental Defenders Office.

Know your situation. Assess how tilted the system is, honestly. Watch for genuine corruption and refer it to the anti-

corruption commissions. Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers.
